

Court No. - 39

Case :- WRIT - C No. - 3227 of 2025

Petitioner :- Zubair Ahmad

Respondent :- State of U.P. and Another

Counsel for Petitioner :- Ajay Kumar Sinha, Smriti Shukla

Counsel for Respondent :- C.S.C., Narendra Kumar Tiwari

Hon'ble Siddhartha Varma, J.

Hon'ble Ms. Nand Prabha Shukla, J.

1. Heard learned counsel for the petitioner, learned Standing Counsel and Sri Narendra Kumar Tiwari, learned counsel appearing for the Electricity Department.
2. The petitioner has approached this Court when the amount, which was sought to be recovered, was also including that period when the meter reading was not being displayed in the electronic meter.
3. Learned counsel appearing for the Electricity Department however, has passed on certain instructions, which states in paragraph-6 that bill has been shown on the basis of reading which was being shown by the electronic meter.
4. However, since, learned counsel for the petitioner is aggrieved by the disputed bill, we are of the view that the petitioner may move an application before the U.P. Electricity Department under Clause 6.5 of the Electricity Supply Code, 2005 within ten days from today. Thereafter, the relevant authority under the relevant clause, i.e. under Clause 6.5 of the U.P. Electricity Supply Code shall decide the same within a period of two months thereafter.
5. For a period of three months or till the decision of the application under Clause 6.5 of the U.P. Electricity Supply Code, no coercive action shall be taken against the petitioner.
6. In view of the aforesaid, writ petition stands **disposed of**.
7. A copy of the instructions be handed over to the learned counsel for the petitioner.

Order Date :- 5.2.2025

Monika

(Nand Prabha Shukla, J.) (Siddhartha Varma, J.)